

25TRCV03751 25TRCV03751

County: los-angeles

Division: Civil Law and Motion

Department: E

Hearing date: 2026-07-16

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Case Number: 25TRCV03751 Hearing Date: July 16, 2026 Dept: E

Superior Court of California

County of Los Angeles

Southwest District

Torrance Dept. E

THOMAS

J. HARTMAN, AS TRUSTEE OF THE THOMAS J. HARTMAN TRUST.

Plaintiff,

Case No.:

25TRCV03751

vs.

[Tentative]

Granted

VISTA

REALTY, INC., dba VISTA SOTHEBY'S INTERNATIONAL REALTY, a California Corporation, and AMY NICOLE CIMETTA, an individual and DOES 1 through 25, inclusive,

Defendants.

Hearing

Date: July

17, 2026

Moving Parties: Plaintiff Thomas J Hartman

Responding

Party: Defendant Vista Reality Inc.

HEARING: Motion for Relief from

Waiver of Objections

The Court considered the moving,
opposition, and reply papers.

RULING

The Court grants the Motion for Relief from Waiver of Objections.

BACKGROUND

On

October 31, 2025, Plaintiff Thomas

J Hartman filed the Complaint against Defendants Vista Reality Inc. and Amy Nicole
Cimetta, alleging causes of action for breach of fiduciary duties, concealment,
and constructive fraud.

On February 6, 2026,

Defendants propounded Form Interrogatories, Special Interrogatories, Requests
for Production of Documents, and Requests for Admission on Plaintiff.

On May 11, 2026,

Plaintiff served responses.

On May 19, 2026,

Plaintiff filed the Motion for Relief from Waiver of Objections.

On July 1, 2026,

Defendant Vista Reality filed the Opposition

On July 9, 2026,
Plaintiff filed the Reply.

LEGAL STANDARD

The

trial court has broad discretion to grant relief from waiver of objections on a noticed motion upon determining that: (a) the moving party subsequently served discovery responses that are substantially code compliant; and (b) the moving party's failure to timely serve responses "was the result of mistake, inadvertence, or excusable neglect." (Code Civ. Proc., §§ 2030.290 (a), 2031.300 (a), and 2033.280 (a).)

DISCUSSION

Plaintiff requests that the Court relieve him from the waiver of objections to Defendant's Form Interrogatories, Special Interrogatories, Requests for Production of Documents, and Requests for Admission.

Plaintiff argues relief from waiver of objections is warranted because the discovery responses were served in substantial compliance with the applicable statutes and the brief delay resulted from mistake, inadvertence, and excusable neglect.

Plaintiff contends

the verified responses were served by email on Monday morning, May 11, 2026, the first business day after the Friday, May 8, 2026, deadline, and that the delay resulted from an unexpected medical emergency in which counsel ruptured a tendon in her foot and was receiving medical treatment on the day responses were due. Plaintiff argues the client's verifications arrived late Friday night, and that due to the medical emergency, counsel inadvertently miscommunicated with her assistant and failed to convey that responses should be served without verification pending receipt of verifications. Plaintiff contends this was not a strategic delay or discovery abuse, but rather a short, inadvertent delay that was promptly cured once the error was recognized. Plaintiff also argues Defendant suffered no prejudice because it received the verified responses the first business morning after the deadline, approximately 18 months before trial, with no disruption to the case schedule or impairment of trial preparation. Plaintiff requests that the Court grant relief from any claimed waiver and

allow the parties to address any disputes regarding the substance of the responses through the ordinary meet and confer process, consistent with the Civil Discovery Act's preference for resolving discovery disputes on the merits rather than by technical forfeiture.

In opposition, Defendant

argues the motion is procedurally defective because Plaintiff's initial service consisted solely of a declaration styled as a motion without any accompanying memorandum of points and authorities, and that the full motion papers were not served until June 10, 2026, thirteen days after filing and only after Defendants independently learned of the filing and requested copies, in violation of Rules of Court, rule 3.1113(a).

Defendant also

argues Plaintiff failed to complete the required meet and confer process before filing. Defendant contends the parties were actively engaged in good-faith discussions to resolve both the waiver issue and substantive deficiencies in the responses when Plaintiff filed the motion without notice or warning, characterizing this as a tactical maneuver designed to fragment the dispute and remove the waiver issue from substantive discussion rather than resolve the underlying deficiencies.

On the substantive

requirements, Defendant argues Plaintiff has failed to establish the threshold showing of substantial compliance because Plaintiff did not attach the responses to the motion, leaving the Court without any basis to evaluate whether the responses satisfy the mandatory content requirements. Defendant further contends the responses remain substantively noncompliant due to deficiencies Defendant identified and communicated to Plaintiff, and that the absence of substantially compliant responses is independently fatal to the motion, regardless of whether the neglect was excusable.

Defendant also

argues the circumstances do not constitute excusable neglect because counsel who is aware of a medical condition must take reasonable steps, such as seeking assistance from colleagues or arranging for another staff member to handle the matter. Defendant contends counsel had the entire day of May 8 to arrange service while receiving medical treatment, that the responses were already fully prepared, that standard practice permits service of unverified responses with verifications to follow, and that the actual cause of the delay was not

the medical emergency but an internal office miscommunication regarding service timing, which constitutes inexcusable neglect rather than an excusable failure.

First, as to

Defendant's meet and confer contention, Code of Civil Procedure §§ 2030.290 subd. (a), 2031.300 subd. (a), and 2033.280 subd. (a) do not require a meet and confer declaration.

Second, as to Rules of Court rule 3.1113(a), rule 3.1113(a) is not jurisdictional, and as Defendant provided a substantive opposition, the Court finds that the initial service of only the declaration did not prejudice Defendant. (Rules of Court rule 3.1113(a) ["A party filing a motion, except for a motion listed in rule 3.1114, must serve and file a supporting memorandum. The court may construe the absence of a memorandum as an admission that the motion or special demurrer is not meritorious and cause for its denial".])

Next, as to

substantial compliance, Plaintiff has attached the discovery responses to his Reply. Without ruling on the objections asserted to some of the requests, the Court finds that the responses are in substantial compliance with the Code of Civil Procedure. Last, the Court finds that the late responses were caused by excusable neglect as Plaintiff's counsel ruptured a tendon in her foot the night before the responses were due. While Defendant relies on *Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, and *Transit Ads, Inc. v. Tanner Motor Livery, Limited* (1969) 270 Cal.App.2d 275, these cases involved long-running illnesses that attorneys failed to properly respond to. (*Minick v. City of Petaluma* (2016) 3 Cal.App.5th 15, 31-32; *Transit Ads, Inc. v. Tanner Motor Livery, Limited* (1969) 270 Cal.App.2d 275, 286.) Here, Plaintiff's Counsel suffered an unforeseen incident the night before responses were due, which caused confusion in her office. Thus, the Court finds that *Minick* and *Transit Ads* are distinguishable.

Therefore, the

Court grants the Motion for Relief from Waiver of Objections.